

INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor/Consultant Agreement ("Agreement") made and executed on this Date: 27/11/2025 by and between:

Zters, Inc. ("Company") incorporated under the laws of the State of Texas, with its principal place of business located at 13727 Office Park Drive, Houston, TX 77070 (hereinafter referred to as the "Company") which expression shall unless repugnant to the context and meaning thereof be deemed to mean and include its affiliates, successors and assignees of the FIRST PART;

AND

Name: Oscar Andres Rondon Estupiñan, having ID: C.C. 1098764996 (hereinafter referred to as "Contractor/Consultant") which expression, shall, unless repugnant to the context thereof be deemed to include his representatives, successors and heirs of the SECOND PART;

The Company and the Contractor/Consultant shall hereinafter be referred to as such or collectively as "Parties" and individually as "Party".

WHEREAS the Company is engaged in the business of providing commercial waste and construction site solutions;

AND WHEREAS in relation to its business, the Company is desirous of engaging an independent contractor/consultant for providing certain services (defined in Annexure A)

AND WHEREAS the Contractor/Consultant has represented to the Company that he has the requisite skill, knowledge, expertise and capability to provide the services as per the requirements of the Company;

AND WHEREAS pursuant to the representation made by the Contractor/Consultant, the Company has, on a non-exclusive basis, agreed to allow the Contractor/Consultant to provide the services as per the terms and conditions set forth here in below:

1. Term

This Agreement shall come into force on the Date: 27/11/2025 and shall continue to be valid unless terminated in accordance with terms of this Agreement.

2. Nature and Scope of Services

The scope of services to be provided by the Contractor/Consultant relate to software application development and are more fully enumerated in detail under Annexure A to this Agreement. The services shall collectively be referred to as "Services".

3. Payment of Fee

A. In consideration for the services to be performed by Contractor/Consultant, the Company agrees to pay to the Contractor/Consultant.

B. Each undisputed invoice shall be due and payable in United States Dollars within thirty (30) calendar days after receipt of such invoice. The invoice should include the following:

- i. an invoice number;
- ii. the dates covered by the invoice; and
- iii. and a summary of the work performed.

4. Taxes

Unless otherwise specified in the Agreement, the Contractor/Consultant shall pay all such taxes, duties fees and other impositions as may be levied under the Applicable Laws.

5. Changes in Scope of Work

- A. Change Orders: The Company, without invalidating this Agreement, may order changes in the work of the Contractor/Consultant within the general scope of the Agreement consisting of additions, deletions, or other revisions.
- B. Adjustments to Compensation: In the event that any such changes materially impact the cost to the Contractor/Consultant of performing the Services or the time required for such performance, the parties shall negotiate in good faith a reasonable and equitable adjustment in the applicable fees and time schedule, as applicable.

6. Independent Contractor/Consultant Status

- A. Status: Contractor/Consultant is an independent contractor/consultant of Company. Nothing contained in this Agreement shall be construed to create the relationship of employer and employee, principal and agent, partnership or joint venture, or any other fiduciary relationship.
- B. No Authority: Contractor/Consultant shall have no authority to act as agent for, or on behalf of, Company, or to represent Company, or bind Company in any manner.
- C. No Employee Benefits: Contractor/Consultant shall not be entitled to worker's compensation, accident benefits, retirement, insurance or other benefits afforded to employees of Company and shall not make any claim to it either directly or indirectly.
- D. Subcontracting: The Contractor/Consultant shall not be entitled to engage any third party (including Associated Parties) to render any part of the Services or subcontract/ delegate its Services or part thereof without the prior written consent of the Company and in any event shall continue to remain liable for performance and delivery of Services to the Company.
- E. Email Address: Without prejudice to the provisions of this Agreement including Clause 6, for administrative purposes, the Company will provide an email address to the Consultant/Contractor and the Consultant/Contractor shall be required to communicate

with the Company and third parties (as required) in respect of the Services through such email address.

7. Confidentiality

- A. Contractor/Consultant acknowledges that it will be necessary for Company to disclose certain confidential and proprietary information to Contractor/Consultant in order for him to perform duties under this Agreement. Contractor/Consultant acknowledges that disclosure to a third party or misuse of this proprietary or confidential information would irreparably harm Company. Accordingly, Contractor/Consultant will not disclose to any person (including its Associated Parties) or use, either during or after the term of this Agreement, any proprietary or confidential information of Company without Company's prior written permission. Where a disclosure of proprietary or confidential information to a third party (including Associated Parties) is consented to by the Company, the Contractor/Consultant shall ensure that such third parties execute a similar confidentiality and non-disclosure agreement as per the terms of this Clause and submit the duly executed copies of the same to the Company.
- B. Proprietary or confidential information includes:
 - i. the written, printed, graphic, or electronically recorded materials furnished by Company for Contractor/Consultant to use any written or tangible information stamped "confidential," "proprietary," or with a similar legend, or any information that Company makes reasonable efforts to maintain the secrecy of business or marketing plans or strategies, customer lists, operating procedures, trade secrets, design formulas, know-how and processes, computer programs and inventories, discoveries, and improvements of any kind, sales projections, and pricing information
 - ii. information belonging to customers and suppliers of Company about whom Contractor/Consultant gained knowledge as a result of Contractor's/Consultant's services to Company, and
- C. Upon termination of Contractor's/Consultant's services to Company, or at Company's request, Contractor/Consultant shall deliver to Company all materials in Contractor's/Consultant's possession relating to Company's business.
- D. Contractor/Consultant acknowledges that any breach or threatened breach of Clause 7 of this Agreement will result in irreparable harm to Company for which damages would be an inadequate remedy. Therefore, Company shall be entitled to equitable relief, including an injunction, in the event of such breach or threatened breach of Clause 7 of this Agreement. Such equitable relief shall be in addition to Company's rights and remedies otherwise available at law.

8. Representation and Warranties, Covenants of the Contractor/Consultant

The Contractor/Consultant represents and warrants that he has the right, power and authority to enter into this Agreement and to do all such activities as mentioned under this

Agreement and is not barred by any law or contract and shall perform the same in accordance with the terms and conditions laid out herein.

- A. The Contractor/Consultant and represents that he shall perform the Services in a competent and professional manner.
- B. The Contractor/Consultant agrees that he is and will remain in compliance with all the laws applicable, in his capacity as a Party to this Agreement especially including but not limited to the Sexual Harassment (Prevention, Prohibition and Redressal) Act, 2013.
- C. The Contractor/Consultant will in particular not, and nor will any of his officers, employees, partners, representatives or other persons acting for the Contractor/Consultant ("Associated Parties"), directly or indirectly, either in private business dealings or in dealings with the public sector, accept, offer, give or agree to accept, to offer or to give (either himself or in agreement with others) any payment, gift or other advantage which would violate (i) any Anti-Corruption laws or regulations applicable to either party, (ii) India – Prevention of Corruption Act, 1988, (iii) which a reasonable person would otherwise consider to be illegal, improper, or unethical.
- D. The Contractor/Consultant agrees to notify the Company immediately in writing if, at any time, he becomes aware that any of the representations set out above are no longer correct. The Contractor/Consultant shall promptly disclose to the Company any known or suspected violation of this Section if it might have an adverse effect on the Company. The Company may terminate this Agreement upon written notice if it is proven that the Contractor/Consultant has violated the provisions of this Section. This shall not apply if the Contractor/Consultant provides evidence within reasonable period that no violation occurred or that the violation was remedied to the satisfaction of the Company.
- E. The Company shall not and cannot be held liable for the acts committed by the Contractor /Consultant which are beyond the purview of its scope of responsibilities and rights under this Agreement.
- F. The Contractor/Consultant shall endeavor to meet the timely completion of targets always set by the Company for the completion of the Services and also strive to use all his expertise to the best of his ability to improve the brand name and goodwill of the Company through said Services.
- G. The Contractor/Consultant shall follow necessary procedures and not use any illegal means of any nature whatsoever while providing the Services. Any claim that may arise due to the acts or omissions by the Contractor/Consultant shall make the Contractor/Consultant liable to indemnify and keep indemnified the Company for all such loss and damage.

9. Intellectual Property

- A. Work Product: During the course of performing the Services, Contractor/Consultant may, independently or in conjunction with Company, develop information, produce work

product, or achieve other results for Company in connection with the services it performs for Company.

- B. Ownership: Contractor/Consultant agrees that such information, work product, and other results, systems and information developed by Contractor/Consultant and/or Company in connection with such Services (hereinafter referred to collectively as the "Work Product") shall, to the extent permitted by law, be a "work made for hire" within the definition of Section 101 of the Copyright Act (17 U.S.C. 101) and shall remain the sole and exclusive property of Company. To the extent the deliverables are not deemed a "work for hire" under any applicable law, the Contractor/Consultant hereby agrees to irrevocably assign and transfer all rights, title and interest in the deliverables to the Company, including but not limited to patent, copyright interests and rights to create derivative works. The Contractor/Consultant shall execute all documents necessary and provide all reasonable assistance to the Company to perfect its rights in such deliverables.
- C. Assignment of Interest: To the extent any Work Product is not deemed to be a work made for hire within the definition of the Copyright Act, Contractor/Consultant with effect from creation of any and all Work Product, hereby assigns, and agrees to assign, to Company all right, title and interest in and to such Work Product, including but not limited to copyright, all rights subsumed thereunder, and all other intellectual property rights, including all extensions and renewals thereof. Contractor/Consultant hereby assigns to Company or Company's designee, for no additional consideration, all Contractor's/Consultant's rights, including copyrights, in all deliverables and other works prepared by the Contractor/Consultant under this agreement. Contractor/Consultant shall, and shall cause its employees and agents to, promptly sign and deliver any documents and take any actions that Company reasonably requests to establish and perfect the rights assigned to Company or its designee under this provision. Further, the Contractor/Consultant shall not assign to any third party, intellectual property rights created under this Agreement.
- D. Pre-existing intellectual property rights: The Contractor/Consultant hereby confirms that as on the date hereof, he/she has disclosed to the Company in writing any intellectual property rights that is registered in his/her name or in relation to which any statutory application has been made under applicable laws ("Pre-existing Intellectual Property") and acknowledges that provisions of this Clause 9 shall apply mutatis mutandis to any Work Product developed with the use of such Pre-existing Intellectual Property.
- E. Assistance: Contractor/Consultant further agrees to provide all assistance reasonably requested by Company, both during and subsequent to the Term of this Agreement, in the establishment, preservation and enforcement of Company's rights in the Work Product.
- F. Return of Property: Upon the termination of this Agreement, Contractor/Consultant agrees to deliver promptly to Company all printed, electronic, audio-visual, and other tangible manifestations of the Work Product, including all originals and copies thereof.

10. Non-Solicitation

During the term of this Agreement and for two years after any termination of this Agreement, Contractor/Consultant will not, without the prior written consent of the Company, either directly or indirectly, or on Contractor's/Consultant's behalf, solicit or attempt to solicit, divert or hire away any person employed by the Company, or any customer of the Company.

11. Termination

- A. Notice of Termination: This Agreement may be terminated by either the Company or the Contractor/Consultant at any time for any reason, with or without cause, by giving 30 days prior written notice of termination. Further, either party may terminate this Agreement immediately in the event the other party has materially breached the Agreement and failed to cure such breach within 3 (three) days after notice by the non-breaching party is given.
- B. Payment Upon Termination: The Company shall pay Contractor/Consultant for all Services performed by Contractor/Consultant till the last date of termination. No other compensation is payable to the Contractor/Consultant by Company upon such termination.

12. Indemnification

- A. Indemnification by Contractor/Consultant: Contractor/Consultant agrees to indemnify and hold harmless Company and its officers, directors, employees and agents, from and against all claims, liabilities, losses, costs, damages, judgments, penalties, fines, attorneys' fees, court costs and other legal expenses, insurance deductibles and all other expenses arising out of or relating to, directly or indirectly, from:
 - i. the negligent, grossly negligent, or intentional act or omission of Contractor/Consultant or its directors, officers, employees, agents or Contractors,
 - ii. Contractor's/Consultant's failure to perform any of its obligations under this Agreement, and
 - iii. any act or omission of Contractor/Consultant in connection with the Work.
- B. Notification: Company will promptly notify Contractor/Consultant of any claim for indemnification.
- C. Survival: Contractor's/Consultant's obligations under this Clause 12 shall survive termination or expiration of this Agreement.

13. Force Majeure

- A. If either of the Parties to this Agreement are prevented from the performance of the services by force majeure such as government action or inaction, war, serious fire, flood, typhoon, pandemic, epidemic, earthquake, other natural calamities or other

forces beyond the control of the parties, the time for the performance of the services shall be extended by a period equal to the effect of those causes and neither party shall be responsible for loss or damages due to the delay.

- B. The party so prevented by force majeure shall notify the other party in writing as soon as possible from the time of the occurrence of the force majeure and shall use best efforts to mitigate the effects of the force majeure event and to resume normal operations.

14. General provisions

- A. Entire Agreement: This Agreement constitutes the entire agreement between the parties, and supersedes all prior agreements, representations and understandings of the parties, written or oral.
- B. Counterparts: This Agreement may be executed in counterparts, each of which shall be deemed to be an original, but all of which, taken together, shall constitute one and the same agreement.
- C. Amendment: This Agreement may be amended only by mutual agreement between the parties, which shall be made in writing.
- D. Notices: All notices permitted or required under this Agreement shall be in writing and shall be delivered in person or mailed by first class, registered or certified mail, postage prepaid, to the address of the party specified in this Agreement or such other address as either party may specify in writing. Such notice shall be deemed to have been given upon receipt.
- E. Severability: If any provision of this Agreement is held to be unenforceable or invalid, the other provisions shall continue in full force and effect.
- F. Assignment: This Agreement shall not be assigned by either party without the consent of the other party.
- G. Governing Law and Dispute Resolution: This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws rules.
- H. No Waiver of Rights: A failure or delay in exercising any right, power or privilege in respect of this Agreement will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power or privilege.

IN WITNESS WHEREOF, the Company and the Contractor/Consultant have each executed and delivered this Agreement.

Contractor/Consultant:

Oscar Andres Rondon Estupiñan

Company:

ZTERS, Inc

Signed:

Oscar Rondon

Signed:

Date: 27/11/2025

Date:

Name: (Print)

Oscar Andres Rondon Estupiñan

Name: (Print)

Anthony Bures

Title:

Technical Writer

Title:

Digital Development Manager

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Country:

USA

Email Address:

oscar.r@zters.com

Email Address:

anthony.b@zters.com

Note: Please submit a copy of your government issued ID

ANNEXURE I – SCOPE OF SERVICES

The Contractor/Consultant will render the following services to the Company under this Agreement –

1. Web and Mobile Development.
2. Programming including Full Stack Development and Internal Systems Development etc.
3. Security
4. Attending meetings.
5. API connections with 3rd party systems such as QuickBase, Intacct etc.